



Republic of the Philippines
DEPARTMENT OF LABOR AND EMPLOYMENT
Intramuros, Manila



DEPARTMENT ORDER NO. 258-26

DOLE-AS 9JUN'26 16:19

YAN YAN

SUBJECT : INSTITUTIONALIZING FREE LEGAL ASSISTANCE FOR WORKERS, CONSTITUTING THE LABOR ATTORNEYS' OFFICE AND ORGANIZING THE WORKERS LEGAL REPRESENTATION UNIT AND LABOR JUSTICE CLINICS

DATE : 8 JUNE 2026

WHEREAS, Article II, Section 18 of the 1987 Constitution declares that the State affirms labor as a primary socioeconomic force. It shall protect the rights of workers and promote their welfare.

WHEREAS, the Department of Labor and Employment is the primary policy-making, programming, coordinating and administrative entity of the Executive Branch of the government in the field of labor and employment and assumes primary responsibility for the protection and advancement of workers welfare.

WHEREAS, there is a need to consolidate and streamline free legal assistance, conciliation support, workers' education, and legal representation mechanisms of the Department under a unified framework to ensure that workers are aware of their rights and have full access to the Department's programs and services.

WHEREAS, the Department recognizes the emerging concerns of the gig economy workers, platform-based labor, freelancers, and app-based service providers and independent contractors requiring free legal assistance and accessible legal and administrative support.

WHEREAS, Administrative Order No. 110, series of 1989, mandates the constitution of Public Assistance and Complaints Units (PACUs) in all government departments and specifying its principal function to receive and act on complaints and requests for assistance from the general public.

NOW, THEREFORE, pursuant to the authority vested in the Secretary of Labor and Employment by the Revised Administrative Code of 1987 and relevant laws, rules and regulations, the following are hereby promulgated:

SECTION 1. Objectives. – This Order seeks to support the implementation of the constitutional mandate of the Department of Labor and Employment to protect the rights of workers and promote their welfare, provide public assistance and support to

workers and the general public, upgrading for this purpose, the Department's Public Assistance and Complaints Unit (PACU), presently within the Department's Legal Service.

SECTION 2. *Organization of the Labor Attorneys' Office.* – A special directorate is hereby constituted under the Office of the Secretary of Labor and Employment, hereafter to be known as the Labor Attorneys' Office (LAO) which shall absorb the Department's PACU and its present functions and operations. The principal function of the LAO is to assist indigent and qualified workers who are or may be involved in labor proceedings before the National Labor Relations Commission (NLRC), Single Entry Approach (SEnA), voluntary arbitration proceedings, and related quasi-judicial or administrative processes.

The LAO shall be under the direct supervision and control of the Secretary and serve as a unified mechanism for assistance and coordination for workers seeking free legal assistance, counselling, conciliation, mediation, advisory and referral services.

SECTION 3. *Chief Labor Attorney.* – The LAO shall be headed by the Chief Labor Attorney (CLA) to be designated by the Secretary of Labor and Employment from among the Undersecretaries or Assistant Secretaries of the Department. The main task of the CLA is to operationalize the LAO's mandate, identify qualified personnel to implement its activities, and manage the unit's day-to-day operations.

SECTION 4. *Workers' Legal Representation Division.* – In the implementation of its mandate, the LAO shall organize a Legal Representation Division (LRD) within thirty (30) days from the effectivity of this Order, composed of DOLE lawyers, volunteer lawyers, and law students enrolled in an accredited Clinical Legal Education Program (CLEP) of a recognized law school, under the direct supervision of a lawyer. The LRD shall provide free legal assistance and counselling to workers who may be involved in labor proceedings with the NLRC, SEnA, voluntary arbitration proceedings, and related quasi-judicial or administrative processes. LRD Desks shall also be organized in all regional offices, with lawyers assigned to regional offices deputized as Labor Attorneys.

SECTION 5. *Labor Justice Clinics.* – The LAO is mandated to organize Labor Justice Clinics in partnership with accredited law schools of state universities and colleges, private universities and other educational institutions to provide supervised free legal assistance, labor rights orientation, documentation assistance and alternative dispute resolution services. Mobile Labor Justice Clinics will also be organized in Department job fairs and other official events.

SECTION 6. *Gig Economy Unit.* – A Gig Economy Unit is hereby constituted under the LAO to address concerns involving platform workers, delivery riders, freelancers, remote workers, and app-based service providers. The Unit shall provide legal counselling, mediation assistance, and workers' rights orientation programs for the aforementioned workers.

SECTION 7. *Digital and Regional Access.* – The LAO shall upgrade present capabilities of the Department's PACU by establishing and operating a national 24/7



electronic social media and manual hotline to be manned by organic Department personnel, supported by volunteer para-legals, to provide real-time assistance, advisory support and quick-response action on any complaints and concerns submitted by workers and the general public. The LAO may also establish online filing systems, regional assistance centers, mobile labor justice clinics and regional hotline services to improve nationwide accessibility of labor justice mechanisms.

SECTION 8. *Coordination with Existing Agencies.* – The LAO shall coordinate with the NLRC, National Conciliation and Mediation Board, the Supreme Court's Unified Legal Aid System Office, the Integrated Bar of the Philippines, the Legal Education Board, and other concerned agencies for effective implementation.

SECTION 9. *Authority to Call Upon Personnel, Partnerships.* – The LAO CLA is authorized to call upon all technical staff of the DOLE, its bureaus, offices and attached agencies to assist in any function of the LAO. The CLA may likewise explore partnerships with bilateral or multilateral international organizations to support programs and activities implemented pursuant to this Order.

SECTION 10. *Funding.* – The implementation of programs and activities pursuant to this Order shall be funded from existing appropriations of the Department, and from future appropriations approved for the same purpose, with full compliance with government accounting and auditing rules and regulations.

SECTION 11. *Repealing Clause.* – All preceding orders and internal issuances inconsistent with this Order are hereby superseded, amended, or repealed accordingly.

SECTION 12. *Effectivity.* – This Order shall take effect immediately upon issuance and shall be in full force and effect unless otherwise revoked.

For the information and guidance of all concerned.


FRANCIS N. TOLENTINO
Secretary

